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TAB 2



Board of Education Report

File #: Rep-251-24/25, **Version:** 1

Agenda Date: 4/8/2025

In Control: Human Resources

California Department of Education's Transitional Kindergarten Qualification Requirements

Human Resources Division and Office of Transitional Programs

Brief Description:

(California Department of Education's Transitional Kindergarten Qualification Requirements) Recommends recognizing as Transitional Kindergarten compliant any multiple subject credentialed teacher who previously served as a teacher of record in a classroom with preschool-age children for at least one good year or who successfully completes the District's Early Childhood Micro-Credentialing Program. These would serve as two District recognized pathways to meet the additional state Transitional Kindergarten qualification requirements.

Action Proposed:

Recognize multiple subject credentialed teachers who have previously served as teachers of record in a Transitional Kindergarten (TK), School Readiness Language Development Program (SRLDP), pre-K, Transitional Kindergarten, Expanded Transitional Kindergarten, Universal Transitional Kindergarten (UTK), or preschool classroom for at least one academic year, prior to August 1, 2025, as meeting the new California Department of Education's Transitional Kindergarten teaching requirements expected of all TK teachers by August 2025.

Acknowledge the District's Early Childhood Micro-Credentialing Program as a pathway to meet the TK requirements expected of all TK teachers by August 2025, including previous cohort participants who successfully completed the program and all future cohort completers.

The proposal is pursuant to the [California Education Code \(EC\) Section 48000\(g\)\(4\)](https://leginfo.ca.gov/faces/codes_displaySection.xhtml?sectionNum=48000.&lawCode=EDC), https://leginfo.ca.gov/faces/codes_displaySection.xhtml?sectionNum=48000.&lawCode=EDC which allows for a local education agency like the Los Angeles Unified School District (LAUSD) to:

“Determine and document that a teacher employed by the local educational agency has professional experience in a classroom setting with preschool-age children meeting the criteria established by the governing board or body of the local educational agency that is comparable to 24 units in early childhood education, child development, or both”.

Background:

Education Code section 48000(g), under the purview of the California Department of Education (CDE), requires credentialed teachers who are first assigned to a TK classroom after July 1, 2015, to have one of the following by August 1, 2025:

- At least 24 units in early childhood education, or childhood development, or both
- Professional experience in a classroom setting with preschool-age children comparable to the 24 units of education described in bullet 1 (comparability determined by the local employing agency)
- Child Development Teacher Permit, or an early childhood education specialist credential, issued by the Commission on Teacher Credentialing

To support teachers in meeting the State's new TK teaching requirements, the Division of Human Resources (HR) and the Early Childhood Education Division (ECED) recommend the Board of Education recognize teachers' one year minimum of previous teaching experience with preschool-age children to be comparable to the required 24 units of early childhood education and authorize HR to grant the 24-unit comparability to teachers who complete the District's Early Childhood Micro-Credentialing Program.

The Early Childhood Micro-Credentialing Program was developed in 2021 in partnership between HR and ECED. The program is currently supporting its third cohort of educators with 105 hours of professional learning in hybrid and real-time, which includes 30 hours of face-to-face instructor-led training, 45 hours of self-paced online training, and 30 hours of independent work spent creating five competency-based artifacts that require candidates to demonstrate the application of their learning in a TK setting. The program equips participants with specialized, research-based skills tailored to meet the unique challenges of early education.

Expected Outcomes:

That the Board of Education approve previous professional work experience or completion of the Early Childhood Micro-Credentialing Program as pathways to meeting the State's updated requirements for teaching Transitional Kindergarten. Approval of both pathways ensures the District has sufficient qualified early education staff to fill current and future TK assignments, which will be critical for meeting the District's goal of expanding Universal Preschool and TK programs.

Board Options and Consequences:

Failure to approve previous professional work experience or completion of the Early Childhood Micro-Credentialing Program as pathways to meeting the State's new requirements for teaching TK, may result in a shortage of District teachers meeting TK qualifications by the August 2025 deadline, thus putting the District out of compliance with California Department of Education's mandate.

Failure to approve the recommended comparability pathways requires teachers to identify alternative methods to acquire the requisite qualifications, such as enrolling in local programs and paying for the additional coursework. Teachers may opt out of teaching TK classes to avoid the new requirements and potential associated costs.

As of Fall 2024-2025, approximately 1,100 teachers were identified as carrying a general education TK roster, with 61% of these teachers meeting the updated CDE TK requirements. As TK programs continue to expand, the District's need for TK compliant teachers will continue to grow.

The CDE will assess an audit penalty for each TK teacher that does not meet the credentialing requirements in the 2026 fiscal year. The estimated penalty is currently \$246,000 per teacher that is out of compliance with the credentialing requirement, although this amount is subject to change.

Policy Implications:

Education Code section 48000(g) requires credentialed teachers who are first assigned to a Transitional Kindergarten classroom after July 1, 2015, to have one of the following by August 1, 2025:

- At least 24 units in early childhood education, or childhood development, or both
- Professional experience in a classroom setting with preschool-age children comparable to the 24 units of education (comparability determined by the local employing agency)
- Child Development Teacher Permit issued by the Commission on Teacher Credentialing

Recognizing professional work experience or completion of the Early Childhood Micro-Credentialing Program as pathways for meeting the new TK teaching requirements ensures the District is in compliance with California Department of Education's early education teaching criteria. In addition, supporting teachers in meeting State early education requirements is critical to meeting LAUSD's goal of expanding high-quality Universal Preschool and TK offerings for all children.

Moreover, approving the District's Early Childhood Micro-Credentialing Program as a pathway for current and future teachers to satisfy the TK teaching requirements and/or to expand their knowledge of TK instruction, aligns with LAUSD's Strategic Plan priority of investing in staff with competency-based, rigorous, and relevant professional learning opportunities.

Budget Impact:

The District's Early Childhood Micro-Credentialing Program is jointly supported and funded through ECED and HR. Program expenses include training resources, materials, and staff time. Continued funding will be necessary to maintain program quality if the District's expansion of TK and preschool programs increases the demand for highly qualified early childhood staff, thus increasing Early Childhood Micro-Credentialing enrollment.

Student Impact:

Providing TK students with access to experienced teachers, with first hand knowledge of preschool-age learning pedagogy, and/or to teachers who have completed a high-quality micro-credential program in early childhood education will offer a unique blend of expertise and fresh, innovative perspectives to our TK student population. Experienced teachers bring a wealth of knowledge and understanding of child development, classroom management, and proven instructional strategies, fostering a stable and nurturing learning environment. Teachers without this prior teaching experience, will have access to specialized preparation through the micro-credentialing program, which incorporates the latest research-based practices, innovative approaches in early childhood education, and coaching and feedback from experts in the field of TK instruction. This dynamic teaching force will provide a balanced, robust early learning foundation that will support the cognitive, social, and emotional growth of TK students throughout the District, in preparation for future academic success.

Equity Impact:

Component	Score	Score Rationale
Recognition	3	Recognizing both experienced teachers and those who have completed the District's Early Childhood Education Micro-Credentialing Program as meeting the State's new TK qualification mandate has a significant equity impact by providing all students, particularly those from underrepresented or marginalized communities, with access to high-quality early childhood programs, leading to long-lasting transformative benefits for our students.

Component	Score	Score Rationale
Resource Prioritization	3	The Early Childhood Micro-Credentialing Program builds the capacity of existing staff and will serve as an essential strategy for expanding and promoting high quality early childhood education programs for all children.
Results	4	The District's Early Childhood Education Micro-Credentialing program prioritizes preparing educators to deliver developmentally appropriate, culturally and linguistically relevant, and evidence-based instruction to eliminate opportunity gaps and personalize learning for all students, but specifically those from underrepresented communities.
TOTAL	10	

Issues and Analysis:

The work experience and Early Childhood Micro-Credentialing Program compliance pathways effectively addresses key District challenges, including potential TK staff shortages and non-compliance of State mandates by validating the experience of the teachers who have served in preschool-age classrooms. The Early Childhood Micro-Credentialing Program builds the capacity of existing staff; supports employee retention by providing structured, meaningful growth opportunities leading to increased job satisfaction; and the Program ensures LAUSD remains compliant with California Department of Educations' mandates, policies and quality benchmarks by adjusting program curriculum to incorporate new State learning foundations.

Attachments:

Attachment A: California Education Code (EC) Section 48000(g)(4)

Submitted:

03/17/25

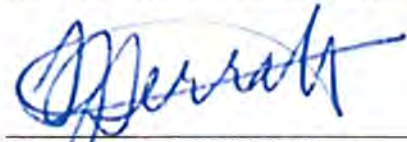
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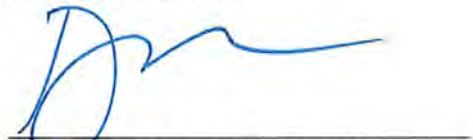
RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED & PRESENTED BY:


FRANCISCO J. SERRATO
Chief Human Resources Officer
Human Resources Division

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

APPROVED & PRESENTED BY:

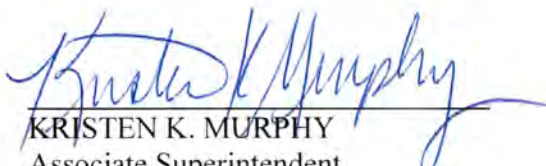

PIA SADAQATMAL
Chief of Transitional Programs
Transitional Programs Office

✓ Approved as to form.

REVIEWED BY:

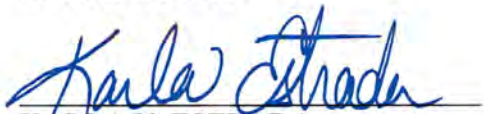

NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

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✓ Approved as to budget impact statement.

APPROVED BY:


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Deputy Superintendent of Instruction
Office of the Deputy Superintendent of Instruction

State of California

EDUCATION CODE

Section 48000

48000. (a) A child shall be admitted to a kindergarten maintained by the school district at the beginning of a school year, or at a later time in the same year, if the child will have their fifth birthday on or before one of the following dates:

- (1) December 2 of the 2011–12 school year.
- (2) November 1 of the 2012–13 school year.
- (3) October 1 of the 2013–14 school year.
- (4) September 1 of the 2014–15 school year and each school year thereafter.

(b) The governing board of the school district of a school district maintaining one or more kindergartens may, on a case-by-case basis, admit to a kindergarten a child having attained the age of five years at any time during the school year with the approval of the parent or guardian, subject to the following conditions:

(1) The governing board of the school district determines that the admittance is in the best interests of the child.

(2) The parent or guardian is given information regarding the advantages and disadvantages and any other explanatory information about the effect of this early admittance.

(c) (1) As a condition of receipt of apportionment for pupils in a transitional kindergarten program pursuant to Section 46300, and Chapter 3 (commencing with Section 47610) of Part 26.8, as applicable, a school district or charter school shall ensure the following:

(A) In the 2012–13 school year, a child who will have their fifth birthday between November 2 and December 2 shall be admitted to a transitional kindergarten program maintained by the school district or charter school.

(B) In the 2013–14 school year, a child who will have their fifth birthday between October 2 and December 2 shall be admitted to a transitional kindergarten program maintained by the school district or charter school.

(C) From the 2014–15 school year to the 2021–22 school year, inclusive, a child who will have their fifth birthday between September 2 and December 2 shall be admitted to a transitional kindergarten program maintained by the school district or charter school.

(D) In the 2022–23 school year, a child who will have their fifth birthday between September 2 and February 2 shall be admitted to a transitional kindergarten program maintained by the school district or charter school.

(E) In the 2023–24 school year, a child who will have their fifth birthday between September 2 and April 2 shall be admitted to a transitional kindergarten program maintained by the school district or charter school.

(F) In the 2024–25 school year, a child who will have their fifth birthday between September 2 and June 2 shall be admitted to a transitional kindergarten program maintained by the school district or charter school.

(G) In the 2025–26 school year, and in each school year thereafter, a child who will have their fourth birthday by September 1 shall be admitted to a transitional kindergarten program maintained by the school district or charter school.

(2) (A) In any school year, a school district or charter school may, at any time during a school year, admit a child to a transitional kindergarten program who will have their fifth birthday after the date specified for the applicable year in subparagraphs (A) to (F), inclusive, of paragraph (1) but during that same school year, with the approval of the parent or guardian, subject to the following conditions:

(i) The governing board of the school district or the governing body of the charter school determines that the admittance is in the best interests of the child.

(ii) The parent or guardian is given information regarding the advantages and disadvantages and any other explanatory information about the effect of this early admittance.

(B) Notwithstanding any other law, a pupil admitted to a transitional kindergarten program pursuant to subparagraph (A) shall not generate average daily attendance for purposes of Section 46300, or be included in the enrollment or unduplicated pupil count pursuant to Section 42238.02, until the pupil has attained the pupil's fifth birthday, regardless of when the pupil was admitted during the school year.

(d) For purposes of this section, “transitional kindergarten” means the first year of a two-year kindergarten program that uses a modified kindergarten curriculum that is age and developmentally appropriate.

(e) A transitional kindergarten shall not be construed as a new program or higher level of service.

(f) It is the intent of the Legislature that transitional kindergarten curriculum be aligned to the California Preschool/Transitional Kindergarten Learning Foundations developed by the department.

(g) As a condition of receipt of apportionment for pupils in a transitional kindergarten program pursuant to Section 46300, a school district or charter school shall do all of the following:

(1) Maintain an average transitional kindergarten class enrollment of not more than 24 pupils for each schoolsite. For purposes of this calculation, the following shall apply for each schoolsite of a school district or charter school:

(A) “Class” means a group of pupils scheduled to report regularly at a particular time to a particular teacher during the regular schoolday, as defined by the governing board of the school district or the governing body of the charter school, as applicable, excluding special day classes. Classes in the evening and summer school class shall not be considered classes for purposes of this calculation.

(B) (i) “Active enrollment count” for purposes of subparagraph (C) means the count of all pupils enrolled in a class with transitional kindergarten pupils on the first day of the school year on which the class was in session, plus all later enrollees, minus

all withdrawals since that first day. An active enrollment count shall be made on the last teaching day of each school month that ends before April 15 of the school year.

(ii) For school districts, active enrollment count shall not include pupils enrolled in independent study pursuant to Article 5.5 (commencing with Section 51744) of Chapter 5 of Part 28 who meet the minimum day requirements for independent study and are continually enrolled in independent study for more than 14 schooldays in a school year.

(iii) For charter schools, active enrollment count shall not include pupils enrolled in independent study pursuant to Article 5.5 (commencing with Section 51744) of Chapter 5 of Part 28 who are continually enrolled in independent study for more than 14 schooldays on any of the days on which school is taught for the purpose of meeting the 175-instructional-day offering, as described in Section 11960 of Title 5 of the California Code of Regulations.

(C) “Average number of pupils enrolled per class” means the quotient of the sum of the active enrollment counts made under subparagraph (B) divided by the total number of those active enrollment counts for each class of the schoolsite.

(D) “Average transitional kindergarten class enrollment” means the quotient of the sum of the average number of pupils enrolled per class determined pursuant to subparagraph (C) of all classes at the schoolsite divided by the total number of all classes at the schoolsite that include transitional kindergarten pupils, rounded to the nearest half or whole integer.

(2) Commencing with the 2022–23 school year, maintain an average of at least one adult for every 12 pupils for transitional kindergarten classrooms at each schoolsite. For purposes of this calculation, the following shall apply for each schoolsite of a school district or charter school:

(A) “Total transitional kindergarten enrollment” is the sum of the average number of pupils enrolled per class of all classes at the schoolsite, as determined in subparagraph (C) of paragraph (1).

(B) “Number of adults” shall be determined for each schoolsite as follows:

(i) A count of employees of the school district or charter school assigned to each class at the schoolsite that includes transitional kindergarten pupils shall be made on the last teaching day of each school month that ends before April 15 of the school year.

(ii) The sum of all of the adult counts pursuant to clause (i) shall be divided by the total number of those counts, rounded to the nearest half or whole integer.

(C) “Adult-to-pupil ratio” shall be the quotient of the total transitional kindergarten enrollment divided by the total number of adults, rounded to the nearest half or whole integer.

(3) (A) Commencing with the 2025–26 school year, and for each year thereafter, maintain an average of at least one adult for every 10 pupils for transitional kindergarten classrooms.

(B) It is the intent of the Legislature to appropriate funds for purposes of this paragraph.

(4) Ensure that credentialed teachers who are first assigned to a transitional kindergarten classroom after July 1, 2015, have, by August 1, 2025, one of the following:

(A) At least 24 units in early childhood education, childhood development, or both.

(B) As determined and documented by the local educational agency employing the teacher, professional experience in a classroom setting with preschool age children meeting the criteria established by the governing board or body of the local educational agency that is comparable to the 24 units of education described in subparagraph (A).

(C) A child development teacher permit, or an early childhood education specialist credential, issued by the Commission on Teacher Credentialing.

(h) A school district or charter school may place four-year-old children, as defined in Section 8205, enrolled in a California state preschool program into a transitional kindergarten program classroom. A school district or charter school that commingles children from both programs in the same classroom shall meet all of the requirements of the respective programs in which the children are enrolled, and the school district or charter school shall adhere to all of the following requirements, irrespective of the program in which the child is enrolled:

(1) An observation using the Classroom Assessment Scoring System (CLASS) tool and CLASS Environment tool shall be completed for the classroom.

(2) All children enrolled for 10 or more hours per week shall be evaluated using the Desired Results Developmental Profile, as specified in Section 17702 of Title 5 of the California Code of Regulations.

(3) The classroom shall be taught by a teacher that holds a credential issued by the Commission on Teacher Credentialing in accordance with Section 44065 and subdivision (b) of Section 44256 and who meets the requirements set forth in subdivision (g).

(4) The classroom shall be in compliance with the adult-child ratio specified in subdivision (c) of Section 8241.

(5) Contractors of a school district or charter school commingling children enrolled in the California state preschool program with children enrolled in a transitional kindergarten program classroom shall report the services, revenues, and expenditures for the California state preschool program children in accordance with Section 18068 of Title 5 of the California Code of Regulations. Those contractors are not required to report services, revenues, and expenditures for the children in the transitional kindergarten program.

(i) Until July 1, 2019, a transitional kindergarten classroom that has in attendance children enrolled in a California state preschool program shall be licensed pursuant to Chapter 3.4 (commencing with Section 1596.70) of, and Chapter 3.5 (commencing with Section 1596.90) of, Division 2 of the Health and Safety Code.

(j) A school district or charter school that chooses to place California state preschool program children into a transitional kindergarten program classroom shall not also include children enrolled in transitional kindergarten for a second year or children enrolled in kindergarten in that classroom.

(k) A child's eligibility for transitional kindergarten enrollment under paragraph (1) or (2) of subdivision (c) shall not impact family eligibility for a preschool or childcare program, including, but not limited to, all of the following:

(1) A Head Start or Early Head Start program, as defined by the federal Head Start Act, as amended (42 U.S.C. Sec. 9801 et seq.).

(2) A childcare center, family childcare home, or license-exempt provider serving children through an alternative payment program pursuant to Chapter 3 (commencing with Section 10225) of Part 1.8 of Division 9 of the Welfare and Institutions Code.

(3) A migrant childcare and development program serving children pursuant to Chapter 6 (commencing with Section 10235) of Part 1.8 of Division 9 of the Welfare and Institutions Code.

(4) A childcare center or family childcare home educational network serving children through a California state preschool program pursuant to Article 2 (commencing with Section 8207) of Chapter 2 of Part 6 of Division 1 of Title 1.

(5) A childcare center, family childcare home, or license-exempt provider serving children through a general childcare and development program pursuant to Chapter 7 (commencing with Section 10240) of Part 1.8 of Division 9 of the Welfare and Institutions Code.

(6) A family childcare home educational network serving children pursuant to Chapter 8 (commencing with Section 10250) of Part 1.8 of Division 9 of the Welfare and Institutions Code.

(7) Childcare and development services for children with special needs pursuant to Chapter 9 (commencing with Section 10260) of Part 1.8 of Division 9 of the Welfare and Institutions Code.

(8) A program serving children through a CalWORKs Stage 1, Stage 2, or Stage 3 program pursuant to Chapter 21 (commencing with Section 10370) of Part 1.8 of Division 9 of the Welfare and Institutions Code.

(l) (1) The Superintendent shall authorize California state preschool program contracting agencies to offer less than four hours each instructional day of wraparound childcare services within a part-day California state preschool program for children enrolled in an education program as a transitional kindergarten or kindergarten pupil, if their families meet the requirements of Section 8208.

(2) The Superintendent shall authorize California state preschool programs operating on a local education agency campus to operate a part-day California state preschool program that allows flexibility in the operational hours and enrollment cutoff dates to better align with the enrollment for the new school year.

(3) Notwithstanding the rulemaking provisions of the Administrative Procedure Act (Chapter 3.5 (commencing with Section 11340) of Part 1 of Division 3 of Title 2 of the Government Code) and Section 33308.5, until regulations are filed with the Secretary of State to implement this subdivision the department shall implement this subdivision, through management bulletins or similar letters of instruction on or before December 31, 2022.

(Amended by Stats. 2024, Ch. 38, Sec. 50. (SB 153) Effective June 29, 2024.)